

the legitimacy of the claims made by the complainant, he is willing to reach an amicable resolution to avoid further disputes”;

- “the images in question were published without my consent and against the internal protocols that I have in place regarding patient privacy”;
- “I have always prioritized the confidentiality and privacy of my patients, and I regret that this situation has arisen”;
- “I am open to discussing this matter further to ensure that the complainant feels heard and that we can resolve this issue satisfactorily”.

2. Considerations on the complaint

The complaint raised by Ms. XX highlights significant concerns regarding the unauthorized dissemination of her images on social media, specifically Instagram. The images in question, which depict her before and after a medical aesthetic procedure, were shared without her consent, raising issues related to the protection of personal data as stipulated in the applicable regulations.

3. Legal framework

The processing of personal data, including images, is governed by the General Data Protection Regulation (GDPR) and the national legislation that implements it. According to Article 6 of the GDPR, processing is lawful only if at least one of the specified conditions is met, including the necessity of processing for the performance of a contract or the consent of the data subject.

4. Findings

Based on the information provided by both the complainant and Dr. Rubino, it is evident that there was a lack of consent for the publication of Ms. XX's images. The absence of explicit consent for the dissemination of her personal data, particularly in a public forum such as Instagram, constitutes a violation of her rights under the GDPR.

5. Conclusion

In light of the findings, it is necessary to take appropriate measures to ensure compliance with data protection regulations and to protect the rights of the complainant. The Garante for the Protection of Personal Data will issue a formal decision regarding the actions to be taken in this case, including potential sanctions against the parties involved for the unauthorized processing of personal data.

6. Orders

The Garante orders:

- The immediate removal of the images of Ms. XX from all social media platforms where they have been published without her consent.
- A review of the internal protocols regarding patient consent for the publication of images to prevent similar occurrences in the future.
- A formal apology to Ms. XX for the unauthorized use of her images and any distress caused by this incident.

This decision is subject to appeal in accordance with the provisions of the law.

Done in Rome, on the 12th of December 2024.

The President

Prof. Pasquale Stazione

of medical doctors states that “the physician must ensure that the publication of clinical cases does not compromise the dignity and confidentiality of the patient, and must obtain informed consent from the patient for any publication that may identify them” (art. 10, par. 1, of the Code of Medical Ethics).

4. Conclusion

In light of the above considerations, it is evident that Dr. Giuseppe Rubino, by disseminating images of the complainant on his Instagram social media profile, has violated the principles of data protection as established by the applicable regulations. The dissemination of such images, which relate to the

complainant's health status, was conducted without the necessary informed consent, thereby infringing upon the rights of the individual concerned.

The Authority, therefore, deems it necessary to proceed with the adoption of the appropriate measures as per art. 58, par. 2, of the Regulation, in order to ensure compliance with the data protection principles and to safeguard the rights of the data subjects involved.

medical doctors and dentists in 2014 (as amended in 2016 and 2017) provides that “the doctor shall ensure the non-identifiability of the subjects involved in scientific publications or disclosures of data and clinical studies” (art. 11 - confidentiality of personal data).

4. Conclusions: declaration of unlawfulness of the processing

In light of the evaluations set forth above, taking into account the statements made by the data controller during the investigation and considering that, unless the fact constitutes a more serious crime, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code (“Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or exercise of the powers of the Guarantor”), it is noted that the elements provided by the data controller are not suitable to accept the requests for archiving, as they do not allow to overcome the observations notified by the Office with the aforementioned initiation act of the procedure, and, moreover, none of the cases provided for by Article 11 of the Guarantor Regulation No. 1/2019 apply.

From all the above, it follows that Dr. Rubino disseminated, through the publication on his Instagram profile, images that revealed data about the health of the complainant, with respect to which the legitimate expectation of confidentiality and privacy was high, also considering the professional and fiduciary relationship with the doctor. From the examination of the information and elements acquired as well as the documentation provided, the processing of personal data of the complainant carried out by Dr. Rubino is unlawful, as it was carried out outside the purposes of care for which the same doctor was authorized to process and in violation of the basic principles set forth in Articles 5 and 9 of the Regulation as well as Article 2-septies, paragraph 8 of the Code.

In this context, considering that the photographs depicting the complainant have been removed, the conditions for the adoption of corrective measures under Article 58, paragraph 2, of the Regulation do not currently exist. It is believed that the conditions of Article 17 of the Guarantor Regulation No. 1/2019 apply.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The violation of Articles 5 and 9 of the Regulation and Article 2-septies, paragraph 8, of the Code, caused by the conduct of Dr. Giuseppe Rubino, entails the application of the administrative pecuniary sanction pursuant to Article 83, paragraph 5 of the Regulation (see Article 166, paragraph 2, of the Code). The Guarantor, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to Article 83, in addition to (other) corrective measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case,” by adopting an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by Dr. Rubino, which has been found to be unlawful, as stated above.

It is deemed necessary to apply paragraph 3 of Article 83 of the Regulation, in relation to the violation of Articles 5 and 9 of the Regulation and Article 2-septies of the Code, where it provides that “if, in relation to the same processing or related treatments, a data controller [...] violates, with intent or negligence, various provisions of this Regulation, the total amount of the administrative pecuniary sanction shall not exceed the amount specified for the most serious violation,” the total amount of the sanction is calculated so as not to exceed the maximum penalty provided for by the same Article 83, paragraph 5.

In light of the above and, in particular, of the category of personal data involved in the violation, which,

by their nature, are particularly sensitive in terms of fundamental rights and freedoms, as well as the type of processing operation (dissemination), it is believed that the level of severity of the violation committed by Dr. Rubino is high (cf. European Data Protection Board, "Guidelines 04/2022 on the calculation of administrative fines under the GDPR" of May 23, 2023, point 60). It has also been assessed that the Guarantor became aware of the event following the receipt of a complaint from a patient of Dr. Rubino (Article 83, paragraph 2, letter h) of the Regulation).

In light of the aforementioned elements and the evaluations made, it is deemed appropriate, in this specific case, to determine the amount of the pecuniary sanction at €20,000.00 (twenty thousand/00) for the violation of Articles 5 and 9 of the Regulation, as well as Article 2-septies, paragraph 8 of the Code, based on the principles of effectiveness, proportionality, and deterrence to which the Authority must adhere, pursuant to Article 83, paragraph 1, of the Regulation.

In this context, it is also believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Guarantor Regulation No. 1/2019, the publication of this section containing the injunction order on the Guarantor's website should proceed. This is due to the type of operation carried out and the personal data subject to unlawful processing.

ALL OF THE ABOVE HAVING BEEN STATED, THE GUARANTOR pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation; Regulation, identifies the illegality of the processing carried out by Dr. Giuseppe Rubino, born in XX (XX) on XX, C.F. XX, in the terms outlined in the reasoning, for the violation of Articles 5 and 9 of the Regulation as well as Article 2-septies, paragraph 8 of the Code;

ORDERS

pursuant to Article 58, paragraph 2, letter i) of the Regulation, the same doctor, in the person of the legal representative pro tempore, to pay the sum of €20,000.00 (twenty thousand/00) as an administrative pecuniary sanction for the violation indicated in this provision.

REQUIRES

the aforementioned doctor to pay the sum of €20,000.00 (twenty thousand/00) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981. It is noted that pursuant to Article 166, paragraph 8 of the Code, the violator retains the option to settle the dispute by paying - always according to the methods indicated in the annex - an amount equal to half of the imposed sanction within the term referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below.

DISPOSES

- a) pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of the injunction order on the Garante's website;
- b) pursuant to Article 154-bis, paragraph 3 of the Code and Article 37 of the Garante Regulation No. 1/2019, the publication of this provision on the Authority's website;
- c) pursuant to Article 17 of the Garante Regulation No. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150/2011, it is possible to appeal against this provision before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, December 12, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE DEPUTY SECRETARY GENERAL
Filippi